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THE JAPAN BUSINESS ASSOCIATION IN VIETNAM
No.: DN22/2016HHDNNB
Re: Comments on Draft of Law on amending, supplementing a number of articles of Law on Technology Transfer 2006

THE SOCIALIST REPUBLIC OF VIETNAM
Independence – Freedom – Happiness

Hanoi, July 25th 2016

Respectfully to: Ministry of Science and Technology

First of all, JBAV would like to send our best regards and sincere thanks to your esteemed ministry for supporting us in commenting and recommending on the policies and regulations of state agencies.

On July 1st 2016, we received the latest Draft of Law on amending, supplementing a number of articles of Law on Technology Transfer 2006 (*hereinafter called "Draft of Law"*). In order to be able to comply with the Law in reality and avoid uncertainties in implementation, we would like to have some comments herein:

Following Clause 5, Article 1 of the Draft of Law, the amendment stated:

"3. Technology transfer price will be determined according to market principles, must be audited and comply with applicable tax regulations in the cases which have parent company – subsidiary or affiliation relationship."

This is a new regulation which amends Article 22 of Law on Technology Transfer 2006, therefore, we would like some of the content to be clarified, as follows:

Firstly, regarding the statement of *"technology transfer price will be determined according to market principles"*, the article is unclear without prescription of which agency will have the right to manage or to define the price of technology transfer in accordance to "market principles".

Secondly, the technology transfer price supposedly *"must be audited"* is regulated by this Draft of Law. However, it doesn't clarify which agencies or which orgnization will hold the audit, also the form and process of how the audit will be organized are unclear.

Above are some of our concerns regarding the Draft of Law on amending, supplementing a number of articles of Law on Technology Transfer 2006. In the future, the Draft of Law is expected to be sent to the National Assembly around October 2016. Hence, we would like MOST to clarify our concerns on the Draft Law so that we will have the basis to comply when the Law is effective.

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Finally, JBAV would like to commit that we will continue our efforts in order to become a bridge between the development of the Japanese businesses and socio-economic development of Vietnam

We sincerely thank you and look forward to receiving your response.

The Japan Business Association in Vietnam

Chairman

HIỆP HỘI CÁC DOANH NGHIỆP NHẬT BẢN TẠI VIỆT NAM
BAN LÃNH ĐẠO

Taiji Yanai

Recipients:
- As above;
- Department of Technology Appraisal, Examination and Assessment - Ministry of Science and Technology;
- Foreign Investment Agency – Ministry of Planning and Investment;

NHẬT BẢN TẠI VIỆT NAM
LÃNH ĐẠO